

25SMCV06676 25SMCV06676

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Case Number: 25SMCV06676 Hearing Date: July 6, 2026 Dept: P

Tentative

Ruling

Pellequr,

LLC v. 136 Beverly Drive, LLC, Case No. 25SMCV06676

Defendant's

Motion to Set Aside Default

Hearing

Date: July 6, 2026

Background

Plaintiff

Pellequr, LLC, a skin care spa, sues Defendant 136 Beverly Drive, LLC, its landlord, for breach of lease, alleging that in January 2019, Defendant's storm water pump failed, causing foul odors and black mold in the space Pellequr leased from Defendant at 136 Beverly Drive, Beverly Hills, CA. (Complaint, ¶ 21.) Plaintiff also alleges that Defendant's construction in November 2023 caused Plaintiff's clients to cancel appointments, obstructed Plaintiff's parking spots, and caused power outages, carbon monoxide leaks, and water damage. (Id. at ¶ 24.)

On

December 18, 2025, Plaintiff filed the complaint.

On

February 5, 2025, Plaintiff filed proof of service by substituted service.

On March

12, 2025, Plaintiff entered default against Defendant.

On May 11,

2026, Plaintiff filed a Code Civ. Proc. § 585 prove-up packet.

On May 18,

2026, Defendant filed this motion to set aside default. On June 22, 2026,

Plaintiff filed opposition. On June 25, 2025, Defendant filed a reply.

On June

29, 2026, Defendant filed a notice of related case.

Arguments

Defendant

moves to set aside default pursuant to Code Civ. Proc. § 473, 473(d), 473.5, 473.6, 580(a), and on equitable grounds. Though Defendant moves to set aside default under five different code sections and on equitable grounds, his primary argument is under Code Civ. Proc. § 473.5(a), that he was not properly served. (Motion to Set Aside Default, pp. 5- 8.) Defendant also argues that default should be set aside because he was surprised by this lawsuit because he was not properly served, and because Defendant has a defense to this case on the merits because the lease at issue was signed by Pellequere, not Plaintiff Pellequr. (Id. at pp. 4, 9.)

In

opposition, Plaintiff argues that it changed its name from Pelle Cure to Pellequr after it signed the lease but before filing this litigation.

(Opposition, p. 4.) Plaintiff argues that it properly served Defendant's agent for service of process, Mr. Hakim, at his home, after Plaintiff's process server was prevented from accessing Defendant's office. (Id. at p. 2.)

Plaintiff also argues that Defendant had actual notice because Plaintiff also emailed copies of the summons and complaint to Defendant's attorney in another matter. Plaintiff also argues that several of Defendant's arguments are irrelevant to setting aside default and that Defendant has a habit of evading service. (Id. at pp. 8-9.)

In reply,

Defendant argues that Plaintiff improperly relies on imputed notice to Defendant's counsel in another matter, that service on an entity's agent's home is not proper under Code Civ.Proc. § 415.20(b), and that substituted service was defective. (Reply, pp. 2-3.) Defendant also argues that Plaintiff's allegations of evasion of service are hearsay and that it has a meritorious defense. (Id. at pp. 4-5.) In reply, Defendant abandons any argument it initially brought under Code Civ. Proc. § 473(b).

Motion

to Set Aside Default

CCP section 473(b) provides, in relevant part, that

"the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Id.)

Code of

Civ. Proc. § 473.5(a) also provides a mechanism for the court to set aside default judgment if service did not result in actual notice: ٤٤

"When

service of summons has not resulted in actual notice to the party in time to defend the action and a default or default judgment has been against him or her he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered."

In the

first instance, the motion to set aside default must be brought within six months of entry of default. In the second instance, the motion must be brought

within two years of entry of default.

“The

policy of the law favors a hearing on the merits.” (Purdum v. Holmes (2010) 187 Cal.App.4th 916, 922.) Therefore, when a party in default moves promptly to request relief, very slight evidence is required to justify a trial court's order setting aside a default. (Id.)

Analysis

In lieu of

personal service, a corporation may be served by substituted service by leaving a copy of the summons and complaint during usual office hours at the person's office, and then mailing a copy of the summons and complaint to that address. (Code Civ. Proc. § 415.20(a).)

A summons

may be served on a corporation or LLC by delivering a copy of the summons and the complaint to the person designated as agent for service of process. (Code Civ. Proc. § 416.10; Code Civ. Proc. § 416.40; Corp. Code § 17701.16(b).) A plaintiff may also serve a Defendant's agent for service of process by substituted service by leaving a copy of the summons and complaint at the agent's office, or, if no physical address is known, at that person's usual mailing address, with a person at least 18 years old who is informed of the contents of the papers, and then mailing a second copy to that office by first class mail with pre-paid postage. (Code Civ. Proc. § 415.20(a), referencing Code Civ. Proc. § 416.10, 416.40.)

In arguing

that they properly served Mr. Hakim, Defendant's agent for service of process, Plaintiffs mistakenly rely on § 415.20(b), which describes the circumstances under which substituted service may be made on an individual defendant, or on individuals described under Code Civ. Proc. sections 416.60, 416.70, 416.80, or 416.90. As Defendant's designated agent for service of process, Mr. Hakim is an individual who may be served on Defendant's behalf under Code Civ. Proc. § 416.10 or § 416.40. Substituted service on Mr. Hakim is proper if it complies with Code Civ. Proc. § 416.20(a).

Here, service

was proper under Section 415.20(a). Plaintiffs submit evidence that they initially attempted to make personal service or substituted service on Defendant itself under

Section 415.20(a) at its place of business at 6100 Wilshire Blvd., Ste. 1100, Los Angeles, CA, 90048 but were refused access to the office space. (Trumpson Decl., ¶ 4.) Plaintiffs then decided to serve Defendant's registered agent for service of process, Mr. Hakim. (Trumpson Decl., ¶ 5.) Mr. Since Plaintiffs had already failed to serve Defendant at the address listed for Mr. Hakim with the Secretary of State, 6100 Wilshire Blvd, Ste. 1100, they attempted service at his other known address, 1005 Summit Dr., Beverly Hills, CA. (Guerridos Decl., ¶ 3.) Plaintiff's registered process made substituted service on Mr. Hakim at that address by serving an individual over 18 years of age and informing her of the contents of the package. (Guerridos Decl., ¶¶ 4-8.) Plaintiffs then mailed a copy of the summons and complaint to Mr. Hakim at the same address they attempted service on. (Guerridos Decl., ¶ 9.) Defendant argues that the only permissible location to serve a corporation is the address registered with the secretary of state. Defendant's cited cases do not support this conclusion, nor does the plain text of Code Civ. Proc. § 415.20(a). Plaintiff's service was proper under § 415.20(a). (See generally, *Ramos v. Homeward Residential, Inc.* (2014) 223 Cal.App.4th 1434, 1412 ["it is axiomatic that strict compliance with the code's provisions for service of process is not required."].)

Though Mr.

Hakim submitted a declaration that he did not receive the summons and complaint served on him at 1005 Summit Dr., Beverly Hills CA, he does not deny that this is his address. (See Hakim Decl., generally.) He also states that had he been served at the address where Plaintiff's first attempted service, he would have received the documents. However, Plaintiff's process server was denied entry at 6100 Wilshire Blvd. when he attempted to serve Defendant there.

Defendant's

argument that default should be set aside because of "surprise" due to the defects in service does not substantiate their effort to set aside default under § 473(b). To set aside default under that subsection, Defendant must submit some evidence of an error or neglect that created the surprise. Defendant submits no evidence of mistake or neglect other than the allegedly-improper service. Since service was proper, there is no evidence of mistake that would justify setting aside default.

Defendant's

argument that Plaintiff Pellequr is a completely different entity from the lease signatory, "Pellequere," is completely unsupported by the evidence.

Defendant submitted no evidence in support of this contention. In opposition, Plaintiff submitted a copy of the lease in question—signed by Pellequr, LLC. Pellequr’s CFO crossed out the name “Pelle Cure” and wrote in Pellequr. The entity “Pellequere” appears nowhere in the document. (Margaryan Decl. ISO Opposition to Defendant’s Motion to Set Aside Default, Exhibit C, p. 8.)

Suspected

AI use

Among

their cited code sections, Defendants claim that they move under Code Civ. Proc. § 473.6, which does not exist. In support of their Code Civ. Proc. § 473.6 argument, Defendants cite *Goya v. P.E.R.U. Enterprises, et al.* (1978) 87 Cal.App.3d 886, a real case concerning CCP § 473.5, not the non-existent CCP §473.6. As Plaintiffs point out, Defendants also cite *Ramos v. Homeward Residential, Inc.* (2014) 223 Cal.App.4th 1434 for the proposition that “service at an address not associated with the corporation in SOS records is ineffective.” (Opposition, p. 6, fn. 7.)

Like *Goya*, *Ramos* is a real case that does not stand for the proposition that Defendant advances. Errors like this are typical of artificial intelligence hallucinations. Pursuant to *Noland v. Land of the Free, L.P.* (2025) 114 Cal.App.5th 426, the Court sets an OSC re: Sanctions for August 3, 2026.

Conclusion

Defendant’s

Motion to Set Aside Default is DENIED without prejudice.

The Court

sets an OSC re: Sanctions for August 3, 2026. Defendant’s counsel is ordered to file a declaration by July 27, 2026 addressing the possible use of AI to craft pleadings.